Purchase Order

Purchase Order Number :3003436545

Order Date : 16.01.2020

Purchase Order number and corresponding Contract Number must be quoted in all Delivery Advice Notes, Invoices and General Correspondence

Deliver to :
Company
Mars International India Pvt Ltd..,
Khed city, At Post-Nimgaon,
Taluka-Khed
Plot no. I-09/IIA
Dist-Pune.
410505 PUNE
India
GSTIN No:27AAACE6794J1Z6
Tel : 020 - 30207828
Fax :

Supplier :15190257
Nihva Technologies Pvt Ltd
1st Floor,G-Block
Samir Plaza
Chinchwad
Thermax Chowk
411019 Pune
Maharashtra
India
GSTIN No:27AAECN0437H1ZM
Tel : 02066304033
Fax :

Queries to : Raju Nallenthiran
Tel :
Fax :

Currency INR - Indian Rupee
Terms of Payment :30 days net
Delivery Terms :FOR-KHED CITY SITE i.e.inclusive of P&F Freight Transit Insurance loading

Quotation ref:SQT/19-20/2282R1 dated-24.12.2019
AMC- Jan to Dec 2020
Scope and specifications as per quotation and agreed with user.

Invoice To
Company
Mars International India Pvt Ltd..,
Khed city, At Post-Nimgaon,
Taluka-Khed
Plot no. I-09/IIA
Dist-Pune.
410505 PUNE
Maharashtra
India
GSTIN No:27AAACE6794J1Z6
Tel : 020 - 30207828

Line	Material Code / Contract Number	HSN of Material/ Service	Description / Sup Part No	Quantity / Dlv Qty	Unit	Price per Unit / Price Unit	Delivery Date	Dlv.time	Net Value
00010	/00000	998729	Telescopic Conveyor	6	EA	22,400.00	2020-12-25		134,400.00
			Total CGST applicable @	9 %					12,096.00
			Total SGST applicable @	9 %					12,096.00
			Net Price (Incl Dis/Freight/P&F/Ins/Tax)						158,592.00

Total Net value INR 158,592.00

Buyer Name : Buyer General Choc

Signature :
For Mars International India Private Limited
Authorized Signatory

All orders subject to our Standard Purchase Terms contained overleaf.
For any queries related to payment, TDS, write to us on below e-mail ids.
Payment related: Mars.paymenthelpdesk@effem.com
TDS related: Mars.tdshelpdesk@effem.com

COMMERCIAL TAX INFORMATION
IEC NO: AAACE6794J
PAN NO: AAACE6794J

ONE LAKH FIFTY EIGHT THOUSAND FIVE HUNDRED NINETY TWO Rupees

Buyer Name : Buyer General Choc

For Mars International India Private Limited
Authorized Signatory

1.Application
These General Conditions ("Conditions") shall apply to this order placed with the Supplier by Mars International India Private Limited ("Mars India"). No conditions of the Supplier which deviate from the Conditions shall be effective unless acknowledged in writing by the Commercial Department of Mars India. The acceptance of, or payment for, goods and equipment ("Goods") or services shall not constitute acknowledgement or acceptance of the Supplier's Conditions which are rejected.
2.Delivery, Title and Risk
2.1All Deliveries shall be made to and services performed at the site specified in the order. "Delivery" (with its grammatical variations and cognate expressions) takes place when the Goods are fully unloaded and inspected by a person authorized by Mars India. In all cases where the order is for a specified weight of Goods, the weight as shown by Mars India's gauged scale shall be conclusive. The Goods and packaging shall be strictly in compliance with the instructions given by Mars India in the order.
2.2Unless otherwise specified, title and risk shall pass from Supplier to Mars India upon Delivery of the Goods. Any retention of title or lien by the Supplier shall be excluded. Mars India reserves the right to inspect the goods and/or their manufacturing process at any reasonable time. Any inspection before or after Delivery or any approval by Mars India of any specifications, drawings, samples or other descriptions of the Goods prepared by the Supplier shall not prejudice Mars India's right to reject defective Goods at a later date or make a claim in respect of them.
2.3If the Supplier does not deliver the Goods or provide the services at the time(s) specified, in addition to its other rights (in damages or otherwise), Mars India has the right to terminate the order or any part thereof, and the Supplier shall not be entitled to make any claim whatsoever against Mars India in relation to such termination. Without prejudice to the aforesaid right, the Supplier must notify Mars India immediately if it cannot supply on time, and must take every possible step to supply on the original date or any earlier or later date that Mars India may agree in writing. Any increased costs required to meet the original or agreed rescheduled supply time shall be borne by Supplier and not be recoverable from Mars India.
2.4Goods must be properly packed to protect them. Additionally the Supplier shall ensure that the packaging is in compliance with the requirements of the Legal Metrology Act, 2011 and any rules made there under. In case of any action being taken by the authorities, the Supplier shall indemnify Mars India against any cost, expense, loss, damage, fine or penalty.
2.5All Goods must be accompanied by the necessary shipping documents (including any export licenses, certificates of origin, permits) as well as by a delivery note which specifies the Goods precisely and shows Mars India's order number and any other data Mars India requires. All fees, levies, duties, charges and taxes, including any import and/or export duties must be paid by the Supplier prior to Delivery to Mars India.
3.Prices and Terms of Payment
3.1Unless otherwise specified, prices include all Delivery and packaging and other ancillary costs. If the payment terms are not specified in the order, payment, subject to Mars India's right to make any deductions for short or incorrect or rejected supply, shall be made within 30 days of receipt of invoice by Mars India. Invoicing shall not take place before Delivery or rendering of the service. Mars India has the right to set off its claims and the claims of any other Mars Group Company against the Supplier, against the claims of the Supplier against Mars India.
3.2All invoices must be sent to Mars India separately from Delivery, specifying the Mars India order number, the line number, if appropriate, the order date, the Goods Delivered and/or services rendered, the date and place of Delivery and any other data Mars India requires. Any value added tax or other tax, fee, levy, duty or charge, if any, must be shown separately.
4. Warranties
4.1The Supplier warrants that in supplying the Goods and services:
(a)it and the Goods and services shall comply with the specifications contained in the order and with all specifications supplied by Mars India in connection with the order;
(b)it and the Goods and services shall comply with all laws of India, including any anti-corruption laws and relevant licensing and registration requirements as well as any applicable standards and packaging as required by law;
(c)the Goods or services shall be free from all defects or deficiencies and fit for any purpose Mars India has made known to the Supplier or which the supplier ought reasonably to know, and in compliance with relevant safety standards, including of Mars India.
4.2Any acceptance of late, incorrect or incomplete Delivery or defective Goods, or payment of invoices, shall not constitute any waiver of any warranty claim or other breach. Any obligation to inspect deliveries arising out of statutory law shall not apply.
4.3If any warranty set out in 4.1 above is breached, Mars India may demand either the immediate replacement free of charge of such Goods or services (rejection) or remedy of the defect. In urgent cases, where the Supplier is not able to respond to the reasonable requirements of Mars India, Mars India shall have the right to obtain required replacements or remedy the defects and/or repair the damage itself at the Supplier's expense. Any other rights in respect of the breach shall remain unaffected.
4.4The warranties set out in 4.1 shall apply for 12 months from Delivery and in the case of rendering of services, 18 months from the time the services were rendered, unless otherwise agreed in writing or unless a longer period of warranty applies in an individual case either by law or by contract.
5. Liability and Insurance
5.1Supplier shall indemnify and keep indemnified Mars India against any and all loss, costs, expenses, damages and liability, arising from any breach of the Conditions or wrongful or negligent act or omission of the Supplier, including product liability and claims for damages as a result of loss, injury or death.
5.2Supplier shall be liable as for itself for any persons employed or contracted in the performance of Supplier's obligations.
5.3Without prejudice to its indemnity obligations, Supplier shall maintain appropriate insurance cover against all claims resulting from a breach of the Conditions or wrongful or negligent act or omission of the Supplier,. If the Supplier fails to do so, Mars India may insure and charge the Supplier with the cost. On request, the Supplier will show the insurance contract to Mars India and will arrange for the insurance to be in the parties' joint names or for Mars India's interest to be noted on the policy. All insurance maintained by the Supplier shall be primary to, and not contributory with, any insurance otherwise available to Mars India.
6.Intellectual Property Rights/Third Party Rights
6.1"Rights" means patent rights, copyrights, trademarks, rights (registered or unregistered), utility model rights and any other intellectual property rights in any part of the world.
6.2If Goods are manufactured or supplied or services rendered according to Mars India's designs or specifications, or where the Supplier has provided any design or development services to Mars India, all Rights arising in relation thereto shall vest exclusively in Mars India (without payment of any further amount). The Supplier shall promptly inform Mars India of any developments and take all measures at the expense and by agreement with Mars India, which may be necessary to vest such rights in Mars India or its nominee and shall at Mars India's request procure the waiver of moral rights in such developments.
6.3The Supplier guarantees that no rights (including any Rights belonging to any third party) are violated or infringed through the supply of any Goods or the provision of any services by the Supplier or through the use of such Goods or services. The Supplier shall immediately indemnify and keep indemnified Mars India at Mars India's request in respect of any claim that the supply, use or possession of any Goods or services supplied by or on behalf of the Supplier infringes any rights of any third party.
6.4Documents and information provided to the Supplier by Mars India and Mars India's Rights shall remain the exclusive property of Mars India. Mars India in particular reserves all copyrights. The use of any Rights of Mars India by Supplier shall not be allowed except as previously authorized in writing by Mars India for the purpose of this order. The Supplier shall not refer to its business connection with Mars India or the Mars Group at any time, whether before, during or after the order without prior written consent of Mars India.
6.5Supplier grants to Mars India a non-exclusive, world wide, royalty free license to use, reproduce, publish, adapt and exploit all Rights of the Supplier to the extent necessary to enable Mars India to enjoy the full benefit of the Goods or services.
7.Confidentiality
The Supplier shall not disclose to any other person any Confidential Information of Mars India or another Company of the Mars Group nor use it for any other purpose than to fulfill this order. Supplier agrees to use a high degree of care and take all steps (including as instructed by Mars India) to preserve the Confidential Information in confidence and prevent access thereto by third parties. Upon request by Mars India, the Supplier shall return to Mars India or destroy and certify that it has destroyed (at Mars India's sole option) all Confidential Information provided by Mars India and/or Mars Group Company and all copies thereof. The provisions of this Clause 7 shall continue to be in effect and binding, notwithstanding the termination of this order, so long as the Supplier has in its possession (whether in any form of record whatsoever or otherwise) Confidential Information disclosed to it by Mars India and/or Mars Group Company. The Supplier shall also be responsible for any breach of such obligations by its officers, employees, agents or sub-contractors. "Confidential Information" shall include any and all information, knowledge or data made available by Mars India or Mars Group Company to the Supplier from time to time that is not available to the general public and shall include but not be limited to specifications, manufacturing processes or practices, product recipes, protocols, materials, business information and data, financial information and data, legal information and documentation, reports, analyses, compilations, forecasts, studies, computer programmes or software, messages, images, drawings, plans, samples, sound, voice, codes, instructions, facts, discoveries, ideas, concepts, products and services, raw materials and packaging, any technical, design and functional documentation, methods, systems, business plans or marketing methods and strategies, customer or suppliers names and other information related to customers or suppliers, price lists, pricing policies, costs, expenses; and any other information, knowledge or data of any nature specified as being confidential, whether relating to Mars India, Mars Group Company, personnel or employees of Mars India or Mars Group Company, or a third person, and whether or not encrypted or reduced to writing or any electronic form, and shall also include any information, knowledge or data developed using or derived from any of the aforesaid information, knowledge or data.
8.Termination
8.1Without prejudice to 2.3 above, either party may terminate this order immediately in writing if there is a material breach of the Conditions by the other which it has not remedied within 14 days of being given written notice to do so.
8.2Either party may terminate this order immediately in writing and without any prior notice, if the other party becomes insolvent or any insolvency procedure with respect to the other party has been opened or (at Mars India's option only) if there is a change in the ownership, control or management of the Supplier which, in Mars India's opinion, could materially affect the interests of Mars India. If there is a change of ownership or control of the Supplier, the Supplier shall inform Mars India thereof immediately.
8.3Termination of this order for whatever reason shall not affect any provisions of the Conditions which are intended to continue to have effect (including 5.1, 6, 7 and 9.2) after it has come to an end.
9.Miscellaneous
9.1The Supplier shall ensure that any person working for it on Mars India's premises receives and complies with the safety rules, procedures and working practices at Mars India and any other instructions given by Mars India.
9.2The relationship of Mars India and the Supplier is that of an independent contractor and neither the order nor the Conditions shall be construed to place the parties in the relationship of partners, joint ventures, fiduciaries or agents. Neither party is granted any right or authority to create any obligation or responsibility, express or implied, on behalf of or in the name of the other party or bind the other party in any manner whatsoever. If by operation of law, the contract of employment of any employee of the Supplier or its sub-contractors transfers to Mars India or any third party whom it appoints in place of Supplier, the Supplier shall indemnify and keep indemnified Mars India against any liability arising from such transfer and any increased costs resulting therefrom.
9.3The Supplier shall keep and produce on Mars India's request all documentation relating to the Goods and services supplied reasonably required by Mars India including such documents necessary for tracing the Goods as well as all parts thereof for a minimum period of five years following Delivery and shall procure that its suppliers do the same. The Supplier shall co-operate with Mars India in any product recall.
9.4No assignment or novation by the Supplier of the whole or any part of the rights or obligations under the order or the Conditions is permitted without the prior written consent of Mars India. Mars India may by notice at any time assign or transfer any order or payment obligations to any member of the Mars group of companies against the dues or claims of the Supplier.
9.5Any change to an order or the Conditions shall be effective only if in writing and signed by Mars India. This shall also apply to any change in, and waiver of, this requirement that changes should be in writing.
9.6The United Nations Convention on the International Sale of Goods (CISG) as well as the Uniform Laws on the International Sale of Goods and on the Formation of Contracts for such sales shall be inapplicable.
9.7The order and the Conditions shall be governed by the laws of India. In the event of a dispute between the parties, either party may give notice to the other of the dispute which will specify the matters at issue and the parties shall have the following 45 days to endeavour to resolve those matters by negotiation and agreement. The requirement for such negotiation shall not prevent a party from seeking interim relief from an appropriate forum. If the parties do not resolve the matter in dispute within that period, those matters in dispute shall be referred to arbitration at New Delhi to be conducted by an arbitrator nominated by Mars India. The arbitration shall be conducted in English and in accordance with the Arbitration and Conciliation Act, 1996 or any statutory modification or replacement of the same. The cost of the arbitration shall form an issue between the parties and shall be borne as provided in the arbitration award.
9.8The Supplier warrants that all software and computer systems used in its business and/or supplied as part of any order are programmed to process correctly and accommodate changes in date including without limitation all date changes including any leap years, without detriment or deterioration in their performance, features, speed and functionality and without any contamination, disruption or deletion of any data or other software.
9.9If any of the Conditions or part thereof is or becomes invalid, the validity of the remaining provisions shall remain unaffected thereby. The parties shall substitute for the invalid provision a new provision which serves the economic purpose of the invalid provision to the furthest possible extent.
9.10Neither the failure by Mars India to insist on any occasion upon the performance by the Supplier of any obligation nor time or other indulgence granted by Mars India to the Supplier shall constitute a waiver of such breach or acceptance of any variation or the relinquishment of any such right or any other right hereunder, which shall remain in full force and effect. Waiver by Mars India of any default by the Supplier in the performance of any obligation shall not be effective unless it is in writing, and shall not operate or be construed as a waiver of any other default or further default. The rights, powers and remedies provided to Mars India under the Conditions are in addition to any right, power or remedy available in law.
9.11In case this order is being placed pursuant to any agreement between Mars India and the Supplier, the terms and conditions of such agreement will prevail over the Conditions in the event of any conflict between the two.
9.12From the date of introduction of GST, appropriate GST rate should be indicated on the invoice along with relevant declarations.
9.13Disclaimer that GST credit to be given in time to us and on GSTN mentioned on this PO of Mars.
9.14In case advances is requested against this PO, you will need to issue a proforma invoice and charge GST on that and the same should be adjusted against the tax in the final invoice. Further this transaction is to be reported on the GST portal.

Buyer Name : Buyer General Choc

For Mars International India Private Limited
Authorized Signatory